

SOCIII Creator Agreement

Version 2.0 · sociii.ai · Effective August 28, 2026

1. Parties

This Creator Agreement ("Agreement") is between SOCIII, Inc., a Delaware corporation ("SOCIII," "we," or "us"), and you, the individual or entity completing the creator onboarding flow ("Creator" or "you"). This Agreement is effective on the date you click "I Agree" during onboarding.

2. Definitions

- "Worker" means an AI Digital Worker you build and publish on the SOCIII marketplace.
- "RAAS Rules" means the Rules-as-a-Service configuration you create to govern your Worker's behavior, subject to the four-tier rules stack.
- "Subscriber" means a user who subscribes to access your Worker.
- "Vault" means the SOCIII shared data layer accessible to Workers.
- "Earnings" means the revenue share payable to you under Section 6.
- "Catalog" means the SOCIII marketplace where published Workers are listed.
- "Platform" means the SOCIII AI platform at sociii.ai and all associated services.

3. Creator Eligibility

3.1 No Upfront Cost

Publishing a Worker on the SOCIII Catalog carries no license fee, minimum revenue requirement, or exclusivity obligation. You keep the right to run your Worker on your own infrastructure at any time under the open-source SDK, as described in our public creator-earnings documentation.

3.2 Eligibility Requirements

- You must be 18 years of age or older (or the age of majority in your jurisdiction, whichever is higher)
- You must be legally capable of entering binding contracts
- You must complete Stripe Connect Express onboarding (identity verification and banking) before your first Worker is published and before any earnings are paid
- You must complete the tax compliance flow (W-9 for US persons; W-8BEN for non-US persons) via Stripe Tax before your first Worker is published
- You must not be on any sanctions list (OFAC SDN or equivalent)
- If you are creating Workers in a regulated vertical (healthcare, aviation, finance, legal, education), you must hold or disclose the relevant professional credentials required by that vertical

3.3 Professional Credentials

SOCIII does not verify professional credentials independently. By listing credentials in your creator profile, you represent that they are accurate and current. Misrepresentation of credentials is grounds for immediate account termination and potential legal action.

4. Worker Standards and Approval

4.1 Publishing Pipeline

Every Worker must pass SOCIII's publishing pipeline before Catalog admission: schema validation against platform schema, confirmation of relevant regulatory and industry rules, completed RAAS rules configuration, the platform's pre-publish checklist, and admin review for compliance with this Agreement and platform policies. SOCIII may reject or require modification of any Worker that does not meet platform standards, with written notice of reasons.

4.2 Prohibited Worker Content

You may not create Workers that: violate any applicable law or regulation; provide unlicensed legal, medical, financial, or professional advice beyond the scope of your disclosed credentials; collect subscriber personal data beyond what is necessary and disclosed; engage in deceptive practices or misrepresent Worker capabilities; generate content that is discriminatory, harassing, or violates civil rights laws; circumvent SOCIII's Tier 0 platform safety rules; or facilitate illegal activity.

4.3 Regulated Vertical Workers

Workers in regulated verticals (healthcare, aviation, financial services, legal, education, government) are subject to additional requirements. Healthcare/HIPAA workers handling Protected Health Information require a signed Business Associate Agreement. Aviation/FAA workers involving flight safety, dispatch, or Part 135 operations must comply with applicable FAA regulations. Financial/FINRA/SEC workers providing investment information must include required disclosures. Legal workers must clearly disclaim that they do not constitute legal advice. Education workers processing student education records are subject to FERPA and the SOCIII for Education Data Processing Addendum.

4.4 Worker Maintenance

You are responsible for keeping your Workers current. When applicable regulations change, you must update your RAAS Rules within 90 days of the regulatory change. SOCIII may suspend non-compliant Workers with notice.

5. Intellectual Property

5.1 Your Ownership

You retain ownership of original creative content you contribute to Workers, including your original RAAS rule configurations, original written descriptions, and original training examples you author.

5.2 SOCIII Platform License

By publishing a Worker, you grant SOCIII a worldwide, non-exclusive, royalty-free license to host, run, display, and promote your Worker on the Platform for as long as it is published. This license terminates when you unpublish or delete the Worker.

5.3 Third-Party Content

You represent that your Workers do not infringe the intellectual property rights of any third party. You are responsible for obtaining all licenses for any third-party content incorporated into your Workers. SOCIII will respond to valid DMCA takedown notices in accordance with the DMCA safe harbor provisions (17 U.S.C. § 512).

5.4 SOCIII IP

SOCIII retains all rights to the Platform infrastructure, the four-tier RAAS rules stack architecture, the Vault data layer, the Alex recommendation engine, and all SOCIII-branded components. You receive no ownership interest in SOCIII's IP.

5.5 Feedback

If you provide feedback, suggestions, or ideas about the Platform, you grant SOCIII an irrevocable, royalty-free right to use such feedback without compensation or attribution.

6. Revenue Share and Payments

6.1 Revenue Split

For each subscriber payment: Creator receives 75% of net subscription revenue; SOCIII retains 25% of net subscription revenue as the platform fee. "Net revenue" is gross customer revenue minus payment processing fees, refunds/chargebacks, and any third-party API costs your Worker incurs on the subscriber's behalf. See our public creator-earnings documentation for a worked example.

6.2 Volume Discounts

Volume discounts offered to subscribers reduce the gross subscription amount before the revenue split, at rates published on the platform from time to time.

6.3 Payout Schedule

Earnings are paid monthly, on or around the 5th of the following month for the previous month's earnings, subject to: a minimum payout threshold of \$25 (balances below this accrue until the threshold is met, or are released after 4 weeks regardless of amount); an active Stripe Connect account with details submitted; completed tax compliance (W-9 or W-8BEN); and no active SOCIII investigation or account suspension.

6.4 Escrow

Earnings accrue in escrow in SOCIII's Stripe account until payout conditions are met. Escrow is not a trust account; it is a bookkeeping entry reflecting amounts owed.

6.5 Tax Obligations

You are solely responsible for all taxes on your earnings. SOCIII does not withhold taxes except as required by applicable law. Stripe will issue a 1099-K to US creators who exceed the IRS threshold. Non-US creators are responsible for compliance with their local tax laws. SOCIII makes no representations about the tax treatment of creator earnings.

6.6 Refunds and Chargebacks

SOCIII's subscriber refund policy applies to all Workers. If a subscriber receives a refund or chargeback, the corresponding creator earnings will be clawed back from the next payout. If insufficient future earnings exist, SOCIII may invoice the creator.

7. Representations and Warranties

You represent and warrant that: you have full legal authority to enter this Agreement; your Workers do not infringe any third-party IP rights; all professional credentials you disclose are accurate, current, and held by you; your Workers comply with all applicable laws and regulations; you will maintain your Workers and keep them compliant with regulatory changes; you will not use the Platform to engage in fraudulent, deceptive, or illegal conduct; and you will not reverse-engineer, scrape, or otherwise misuse the SOCIII platform.

8. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, SOCIII'S TOTAL LIABILITY TO YOU FOR ALL CLAIMS ARISING UNDER THIS AGREEMENT SHALL NOT EXCEED \$500 USD. SOCIII SHALL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING LOST PROFITS, ARISING OUT OF OR RELATED TO THIS AGREEMENT OR THE PLATFORM, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

Some jurisdictions do not allow the exclusion or limitation of incidental or consequential damages. In those jurisdictions, SOCIII's liability is limited to the fullest extent permitted by law.

9. Indemnification

You agree to indemnify, defend, and hold harmless SOCIII, its officers, directors, employees, and agents from and against any claims, liabilities, damages, losses, and expenses (including reasonable attorneys' fees) arising out of or related to: your Workers and RAAS rules configurations; your violation of this Agreement; your infringement of any third-party rights; your misrepresentation of professional credentials; or any claim by a subscriber arising from your Worker's conduct.

10. Term, Suspension, and Termination

10.1 Term

This Agreement begins when you click "I Agree" and continues until terminated by either party.

10.2 Termination by Creator

You may terminate this Agreement at any time by deleting all your Workers and closing your creator account.

10.3 Suspension and Termination by SOCIII

SOCIII may suspend your account (with notice and a 15-day cure period) or terminate this Agreement immediately (without cure period) for: suspension with cure — non-compliance with regulatory update obligations, non-maintenance of Workers, breach of Worker standards; immediate termination — misrepresentation of credentials, intellectual property infringement, facilitating illegal activity, fraud, repeated or willful violations of Tier 0 safety rules, or breach of a BAA.

10.4 Effect of Termination

Upon termination: your Workers are unpublished; existing subscribers retain access through the end of their paid period; pending earnings are paid at the next payout cycle less any amounts owed.

11. Governing Law and Dispute Resolution

This Agreement is governed by the laws of the State of Delaware, without regard to conflict of law principles. Any dispute arising from this Agreement shall be resolved by binding arbitration administered by the American Arbitration Association (AAA) under its Commercial Arbitration Rules, with one arbitrator, conducted in Newark, Delaware. The arbitrator may award any relief available in court. Judgment on the award may be entered in any court of competent jurisdiction.

CLASS ACTION WAIVER: YOU AGREE TO RESOLVE DISPUTES WITH SOCIII INDIVIDUALLY AND NOT AS PART OF ANY CLASS, CONSOLIDATED, OR REPRESENTATIVE ACTION.

For creators outside the US: nothing in this arbitration clause prevents you from asserting mandatory consumer protection rights available under the laws of your home country.

12. General Provisions

Entire Agreement: This Agreement, the Privacy Policy, the Subscriber Data Rights Policy, and any applicable vertical-specific addenda constitute the entire agreement between the parties.

Amendments: SOCIII may update this Agreement with 30 days' written notice. Continued use of the Platform after the effective date constitutes acceptance.

Severability: If any provision is unenforceable, the remaining provisions remain in full force.

No Waiver: Failure to enforce any provision does not waive the right to enforce it later.

Assignment: You may not assign this Agreement without SOCIII's written consent. SOCIII may assign it in connection with a merger, acquisition, or sale of assets.

Force Majeure: Neither party is liable for delays caused by events beyond reasonable control.

13. Contact

Creator support: legal@sociii.ai

Postal: SOCIII, Inc., 131 Continental Dr, Suite 305, Newark, DE 19713